

**Supreme Court of the State of New York**  
**Appellate Division, First Judicial Department**

Present – Hon. Peter H. Moulton,  
Saliann Scarpulla  
Ellen Gesmer  
Llinét M. Rosado  
Kelly O’Neill Levy,

Justice Presiding,

Justices.

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Sharelle Felton, et al.,  
Plaintiffs-Respondents,

Motion No.    **2025-05593**

Index No.     23808/20

Case No.      2024-03450

-against-

St. Joseph Hospital, et al.,  
Defendants-Respondents-Appellants,

Greenwood Crematory,  
Defendant-Appellant-Respondent,

Dawn Taddeo,  
Defendant.

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Plaintiffs-respondents having moved for reargument of or, in the alternative, for leave to appeal to the Court of Appeals, from the decision and order of this Court, entered on September 18, 2025 (Appeal No. 4613),

Now, upon reading and filing the papers with respect to the motion, and due deliberation having been had thereon,

It is ordered that the branch of the motion seeking reargument, is granted, and upon reargument, the decision and order of this Court entered on September 18, 2025 (Appeal No. 4613) is recalled and vacated and a new decision and order substituted therefor. (See Appeal No. 4613 decided simultaneously herewith),

And it is further ordered that the branch of the motion seeking leave to appeal to the Court of Appeals is denied.

ENTERED: March 03, 2026

A handwritten signature in black ink, appearing to read "Susanna Molina Rojas". The signature is fluid and cursive, with the first name "Susanna" being more prominent and the last name "Rojas" following in a similar style.

Susanna Molina Rojas  
Clerk of the Court